

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF SYSTEMIC DISREGARD FOR OBJECTIONS FILED AFTER  
PROPOSED JUDGMENT**

Defendant, Marc Moszkowski, proceeding pro se, hereby files this Notice to document a persistent and unexplained failure of the Court to acknowledge or address 20 docketed pleadings, all filed since June 26, 2025, in response to the proposed Final Judgment initiated by the Court. This pattern raises serious concerns regarding due process, equal access, and the functional integrity of the adversarial system. In support, Defendant states:

**I. Procedural Background and Volume of Objections Filed**

On June 26, 2025, the Judicial Assistant to the presiding Judge informed the parties that Plaintiffs would be responsible for drafting and submitting a

proposed Final Judgment, which was filed by Plaintiffs on July 1, 2025. Defendant submitted his counterproposal in the form of a redlined alternative on July 11, 2025, in accordance with the Court's instructions, despite Plaintiffs' improper attempt to truncate the response window to less than a day.

Since that directive, Defendant has submitted twenty (20) distinct pleadings, each constituting a formal objection, clarification, correction of misstatement, or rebuttal to alleged findings in the Plaintiffs' submission. All 20 have been formally docketed. None have been responded to, ruled upon, or acknowledged by the Court in any official capacity, beyond clerical confirmation of receipt.

Below is a chronological list of the twenty formal pleadings filed by the Defendant between June 27 and July 17, 2025, all of which remain unacknowledged as of this filing:

Filed Pleadings:

1. Notice of Objection and Constitutional Challenge to Summary Denial of Defendant's Emergency Motion to Stay Proceedings (*June 27, 2025*)
2. Notice of Filing Judicial Correspondence (*June 30, 2025*)

- 3.** Supplemental Judicial Notice of Procedural Entrenchment and Appearance of Bias in Support of Renewed Motion to Dismiss (*June 30, 2025*)
- 4.** Notice of Filing Renewed Motion to Dismiss for Fraud on tThe Court Lack of Board Authorization Jurisdictional Defects and Statute of Limitations Bar (*June 30, 2025*)
- 5.** Supplemental Notice of Judicial Conflict and Institutional Incoherence (*July 1, 2025*)
- 6.** Defendant Notice of Systemic Non-Engagement and Bifurcated Court Behavior (*July 1, 2025*)
- 7.** Defendant Notice Regarding Response to Proposed Final Judgment and Reservation of Appellate Rights (*July 2, 2025*)
- 8.** Notice of Procedural Mischaracterization and Lack of Courtesy by Plaintiffs Counsel (*July 2, 2025*)
- 9.** Defendant Notice of Filing Section-by-Section Rebuttal to Proposed Final Judgment and Correction of Material Misrepresentations (*July 9, 2025*)
- 10.** Defendant Request for Emergency Consideration (*July 10, 2025*)
- 11.** Defendant Request for Emergency Consideration (Part II) (*July 11, 2025*)
- 12.** Defendant Notice of Disregarded Filings and Preservation of Appellate Posture (*July 14, 2025*)
- 13.** Defendant Memorandum of Judicial Incoherence on Damages Awarded (*July 14, 2025*)
- 14.** Notice of Preservation of Unrebutted Material Facts (*July 14, 2025*)
- 15.** Affidavit of Indigency and Extraordinary Circumstances in Support of Motion to Stay Enforcement Pending Appeal (*July 14, 2025*)

- 16.** Defendant Motion to Stay Enforcement of Judgment Pending Appeal  
(*July 14, 2025*)
- 17.** Defendant Notice of Plaintiff Self-Negating Allegations and the Court Presumptive Acceptance Thereof (*July 14, 2025*)
- 18.** Supplemental Memorandum Regarding Systemic Judicial and Litigant Misconduct (*July 14, 2025*)
- 19.** Declaration of Marc Moszkowski Regarding Strategic Elder Abuse through Misuse of Judicial Process (*July 15, 2025*)
- 20.** Notice of Filing Defendant Motion to Vacate Default Final Judgment  
(*July 17, 2025*)

## **II. Legal Significance of Post-Judgment Objections**

These post-submission objections are not gratuitous or duplicative. They:

- Identify contradictions within Plaintiffs' proposed findings;
- Rebut factual misstatements or omissions;
- Cite controlling case law and evidentiary records;
- Raise fundamental legal defenses, including jurisdictional and constitutional objections.

Failure to address these filings would effectively result in a Final Judgment entered upon a record that has been openly and repeatedly challenged, without adversarial testing or judicial analysis. Such an outcome contravenes both the appearance and substance of due process.

### **III. Implications for Appellate Review**

If the Court were to adopt Plaintiffs' proposed judgment verbatim or with only superficial revision while ignoring 20 docketed objections, such a ruling would risk reversal on appeal. The record would reflect:

- A one-sided adjudication despite voluminous rebuttal material on file;
- The Court's constructive silence in the face of procedural and evidentiary challenge;
- A breach of the minimum obligations of reasoned adjudication, particularly where factual inaccuracies, jurisdictional concerns, and conflicts of interest have been flagged.

### **IV. Request for Clarification**

Defendant respectfully requests that the Court indicate whether and when it intends to:

- Consider the 20 objections filed since June 26;
- Issue a ruling that reflects review of the full adversarial record;
- Allow oral argument or further submission prior to final judgment.

Should the Court intend to issue judgment imminently without addressing these objections, Defendant respectfully preserves all procedural and

constitutional objections for appellate review and potential collateral challenge.

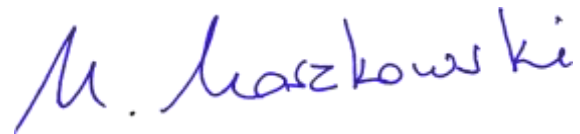
Respectfully submitted this 24<sup>th</sup> day of July, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France



### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 24<sup>th</sup> day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

